

State of North Carolina

LINCOLN

COUNTY

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Kale-Lawing Co., Charlotte, N. C.

This Deed Made this 9th day of March A. D., 1971

by and between D. L. PHILLIPS INVESTMENT BUILDERS, INC.
(formerly Lake Norman Corporation)

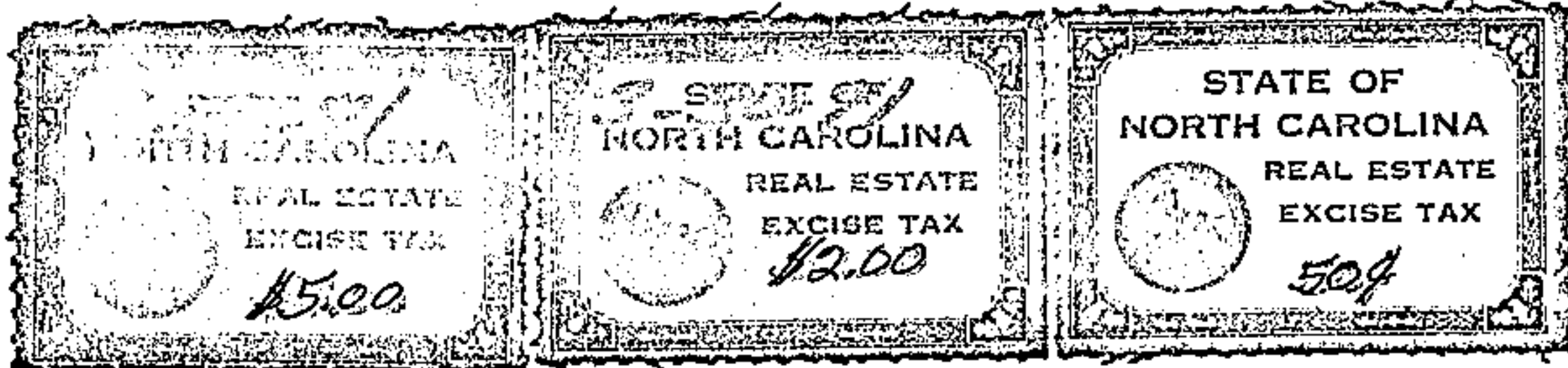
a corporation organized and existing under and by the virtue of the laws of the State of North Carolina with its principal office located at Charlotte of the County of Mecklenburg and State of North Carolina party of the first part, and

WILLIAM B. GARRETT, JR. and wife, GAIL ELAINE GARRETT

of the County of Lincoln and State of North Carolina
part ies of the second part,

Witnesseth, That the said party of the first part, in consideration of One Hundred Dollars (\$100.00) and other valuable consideration to it paid by the parties of the second part, the receipt of which is hereby acknowledged, has bargained and sold, and by these presents, doth grant, bargain, sell and convey unto the said parties of the second part and their heirs, all that certain lot of land, situate, lying and being in Catawba Springs Township, Lincoln County, State of North Carolina, and more particularly described as follows:

BEGINNING at an iron in the easterly margin of a proposed extension of Lake Shore Road (60 feet wide), said iron also being located at a common corner of that lot conveyed to Robert L. Jolley and wife, Reah M. Jolley, by deed dated February 23, 1971, and running thence with said margin N. 19-14 E. 86.09 feet to an iron; thence S. 66-08 E. 225.90 feet to an iron; thence S. 51-26 W. 96.80 feet to an iron; thence N. 66-08 W. 174.15 feet to an iron, the point or place of BEGINNING, containing 17,164 square feet according to a survey dated February 15, 1971, prepared by Phillip DeBerry, Registered Surveyor.



To Have and to Hold, the aforesaid lot
of land and all privileges and appurtenances thereto belonging, to the said
parties of the second part, their
heirs and assigns, to their only use and behoof forever.

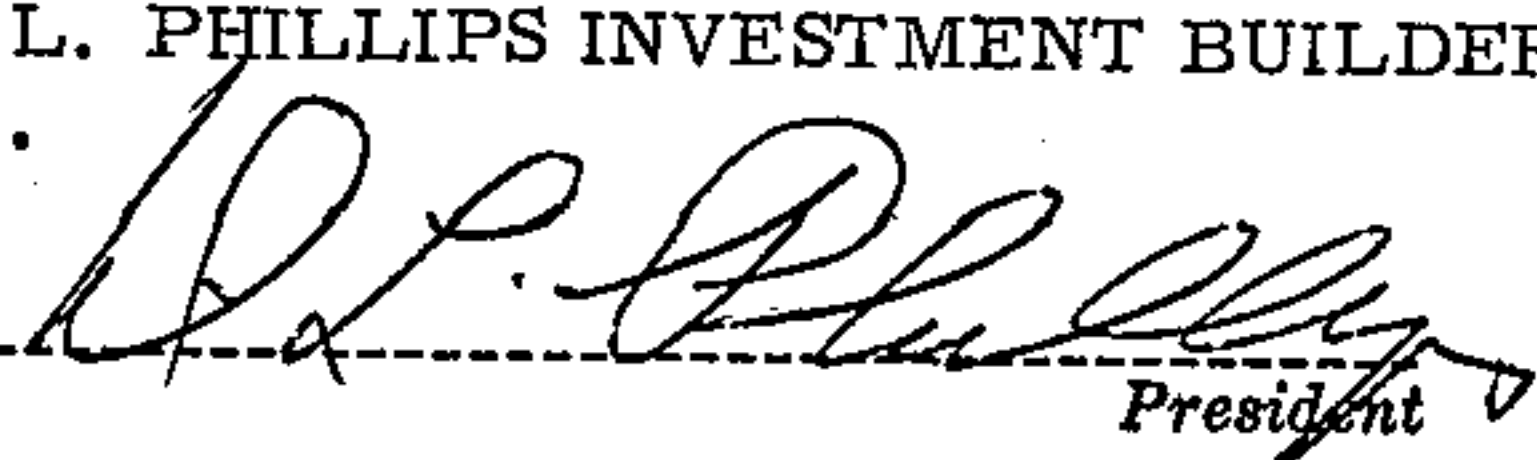
* And the said party of the first part for itself,
its successors and assigns, covenants with the said parties of the second part, their heirs
and assigns, that it is seized of said premises in fee, and has right to convey the same in fee simple;
that the same are free and clear from all encumbrances, and that it will warrant and defend the
said title to the same against the lawful claims of all persons whomsoever.

* This conveyance is made, however, subject to the following conditions
and restrictions imposed for the benefit of the party of the first part, its
successors and assigns, and for the benefit of the owners of other lots shown on
a subdivision map to be recorded in the Lincoln County Public Registry, and known
as Westport Section 2, as follows:

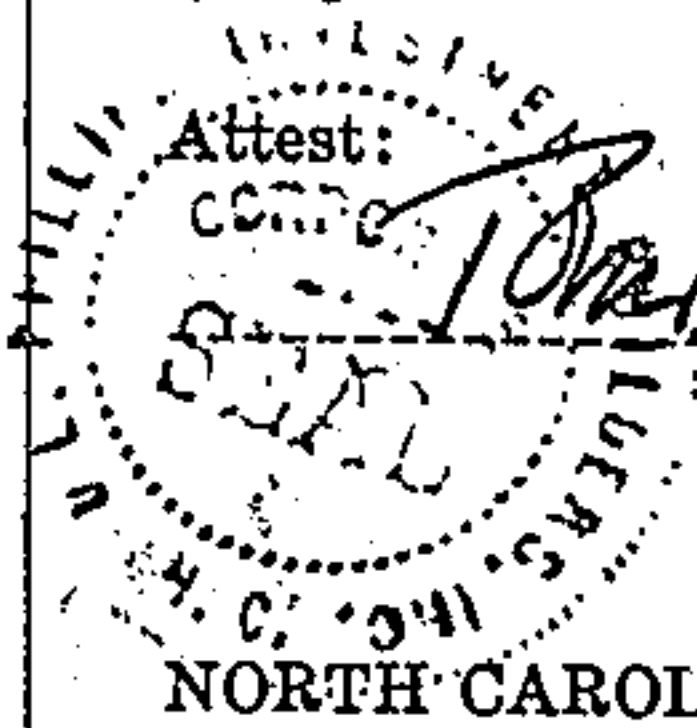
1. The property conveyed hereby ("the lot") shall be used only for private
residential and recreational purposes; and no building (Continued on Page 3)

In Witness Whereof, said party of the first part has caused these presents to be signed in its
name by its President, and its corporate seal to be hereto affixed and attested by its secretary the
day and year first above written, all in pursuance of authority duly given by resolution of the
Board of Directors of the party of the first part. D. L. PHILLIPS INVESTMENT BUILDERS,
INC.

(Corporate Seal)

By  President

Attest:

 Assistant Secretary

NORTH CAROLINA,

County.

This day of 19, personally came before me,
for said County,
who being by me duly sworn says that he knows the common seal of the
and is acquainted with who is the
President and presiding member of said Corporation, and that he, the said
is the Secretary of the said Corporation and saw the said President sign the
foregoing instrument and saw the said common seal of said Corporation affixed to said instrument
by said President (or, and that he, the said
Secretary as aforesaid, affixed said seal to said instrument), and that he, the said
signed his name in attestation of said instrument in the presence
of said President of said Corporation.

Let the instrument with the certificate be registered.

shall be erected, placed or permitted to remain thereon other than one single-family dwelling not to exceed two and one-half stories in height above ground, together with a private garage or carport for not more than three cars and such boathouse and dock facilities as may be desired for private use.

2. No building, other than a boathouse or dock facilities, shall be erected on the lot in violation of the following setback lines: 30 feet from the easterly and westerly lot lines and 10 feet from the northerly and southerly lot lines.

3. D. L. Phillips Investment Builders, Inc. reserves the right, but shall in no case be obligated, to waive in writing any violation of the foregoing setback restrictions provided that such violation does not exceed 10% of the applicable requirements and was unintentional.

4. Any dwelling on the lot shall contain not less than 1400 square feet of ground floor area for a one-story dwelling, not less than 1600 square feet of total finished floor area for split-level dwellings of the tri-level type, and not less than 1200 square feet of ground floor area for a one and one-half story or two-story dwelling. The ground floor area and finished floor area herein referred to shall be gross area and shall not include basements, attached or detached garages, unheated storage areas, carports, porches of any type, or patios.

5. D. L. Phillips Investment Builders, Inc. shall require that a plot plan showing the location of any building or septic tank and a sketch or elevation showing the external appearance of any building on the lot be submitted to it in advance of such construction for written approval thereof. D. L. Phillips Investment Builders, Inc. shall have fifteen days after the receipt of such plot plan and sketch or elevation to accept or reject the same in whole or in part; and if D. L. Phillips Investment Builders, Inc. fails to accept or reject the same within the said fifteen days, then such plot plan and sketch or elevation shall be deemed to be approved. After approval has been granted by D. L. Phillips Investment Builders, Inc., compliance with the approved plot plan and sketch or elevation shall be the responsibility of the then owner or the tenant, as the case may be. Any permission granted by D. L. Phillips Investment Builders, Inc. for construction pursuant to this paragraph shall not constitute or be construed as an approval of the structural stability, design or quality of any structure. No building shall be constructed on any lot pursuant to any plot plan or sketch or elevation rejected by D. L. Phillips Investment Builders, Inc.

6. No residence of a temporary nature shall be erected or allowed to remain on the lot; and no trailer, basement, shack, tent, garage, barn or any structure of a similar nature shall be used as a residence on the lot, either temporarily or permanently.

7. The lot shall not be subdivided by sale or otherwise, so as to reduce the total lot area, except by and with the written consent of D. L. Phillips Investment Builders, Inc.

8. Any dwelling shall be served by a sewage system approved by D. L. Phillips Investment Builders, Inc. or by a septic tank sanitary disposal system constructed and maintained in accordance with the requirements of all regulatory agencies having jurisdiction over the subdivision. No septic tank or any components thereof shall be located nearer than 50 feet to the rear lot line (760 feet elevation contour line). No earth-pit privies shall be permitted.

9. Any dwelling shall be connected to and served by a water system approved by D. L. Phillips Investment Builders, Inc.

10. No animals, livestock or poultry of any kind shall be raised, bred or maintained on the lot except household pets which shall not be kept, raised, bred or maintained for any commercial purposes.

11. No sign boards of any description shall be displayed on the lot without the prior written consent of D. L. Phillips Investment Builders, Inc., except signs "For Rent" or "For Sale" which signs shall not exceed two by three feet in size.

12. No noxious, offensive or illegal activity shall be carried on upon the lot nor shall anything be done thereon which may be or become an annoyance or nuisance to the neighborhood.

13. D. L. Phillips Investment Builders, Inc. reserves the right at any time to grant a ten foot right-of-way over, under or along the front or rear lot line of the lot and a five foot right-of-way over, under or along the side lot line of the lot for the installation and maintenance of poles, lines, conduits, pipes and other equipment necessary to or useful for furnishing electricity, gas, telephone service, water and sewage services or other utilities to the subdivision; provided, however, that no such easement shall unreasonably

interfere with the use and enjoyment of the lot in accordance with these restrictions.

14. These restrictions shall be covenants running with the land and shall be binding on all parties and all persons claiming an interest in the property for a period of twenty-five years from the date hereof, and after that time these restrictions shall be extended automatically for successive periods of ten years unless an instrument, signed by a majority of the then owners of the lots in Westport Section 2 has been recorded, agreeing to change said restrictions in whole or in part.

15. These restrictions may be enforced by D. L. Phillips Investment Builders, Inc. or any lot owner or owners in Westport Section 2 by proceedings at law or in equity against the person or persons violating or attempting to violate any restriction or restrictions, either to restrain violation thereof or to recover damages.

16. Invalidation of any one of these restrictions by judgment, court order or statute shall not affect any of the other provisions hereof, which shall remain in full force and effect.

NORTH CAROLINA
MECKLENBURG

~~Lincoln~~ County.

This 9th day of March, A. D. 1971, personally
came before me D.L. Phillips who, being by me duly
sworn, says that he is the President of D. L. Phillips Investment Builders, Inc.
and that the seal affixed to the foregoing instrument in writing is the corporate seal of the
Company, and that said writing was signed and sealed by him, in behalf of said Corporation,
by its authority duly given. And the said D.L. Phillips acknowledged the said writing
to be the act and deed of said Corporation.

My Commission Expires: April 24, 1971

Christine M. Harrington
Notary Public

State of North Carolina

County of Lincoln

SE.

The foregoing (or annexed) Certificate of Christine M. Harrington,
Notary Public, Mecklenburg County, N.C.

is certified to be correct.

This 30th day of March, A. D., 19 71

Elizabeth S. Carpenter
Register of Deeds

CORPORATION

Deed

D. L. PHILLIPS INVESTMENT

BUILDERS, INC.

TO

See

WILLIAM B. GARRETT, JR. and

wife, GAIL ELAINE GARRETT

Mailing Address

53 Spring Ave.

Newton N.C. 28658

Filed for registration on
the 30th day of March, 1971
at 11:05 A.M. and

RECORDED IN BOOK

OF DEEDS ON PAGE

Elizabeth S. Carpenter
Register of Deeds

7.50 72
48 6.50

DRAWN BY: Fleming, Robinson & Bradshaw, P. A.